

23CMCV01412 23CMCV01412

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-08

Motion: DEFENDANTS AIR DISTRIBUTION USA, INC. AND ROB MANESON'S SPECIAL MOTION TO STRIKE CAUSES OF ACTION 7 AND 8 OF THE FIRST AMENDED COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE § 425.16

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Case Number: 23CMCV01412 Hearing Date: September 8, 2026 Dept: A

The court grants Defendant Air Distribution USA, Inc.'s motion to compel further responses to form interrogatory 9.2, special interrogatories 43, 44, 46, 47, 50, 51, 54, 55, 56, 57, 72 and requests for production of documents 46, 64. Defendant is entitled to discovery regarding Plaintiff's claim for damages, even if later amended as the result of expert analysis. The court grants moving party's request for monetary sanctions against Plaintiff Shisha Aroma, Inc. in the amount of \$8,025.00, payable to Air Distribution USA, Inc. within 30 days.

Tentative ruling on motion to seal and special motion to strike:

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES – SOUTH CENTRAL DISTRICT

ROSE ML
INC.,

Plaintiff,

vs.

AIR
DISTRIBUTION USA INC, et al.,

Defendants.

AIR
DISTRIBUTION USA INC.,

Cross-Complainant,

vs.

ROSE ML
INC., et al.,

Cross-Defendants.

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CASE NO: 23CMCV01412

[TENTATIVE] ORDER RE: DEFENDANTS AIR
DISTRIBUTION USA, INC. AND ROB MANESON'S SPECIAL MOTION TO STRIKE CAUSES OF
ACTION 7 AND 8 OF THE FIRST AMENDED COMPLAINT PURSUANT TO CODE OF CIVIL
PROCEDURE § 425.16

Dept. A

DATE: September 8, 2026

TIME: 8:30 A.M.

Complaint filed: 08/30/2023

FAC filed: 04/20/2026

Cross-complaint filed: 09/19/2023

SACC filed: 04/08/2026

Trial: 11/09/2026

MOVING PARTY: Defendants

Air Distribution USA, Inc. and Rob Maneson

RESPONDING PARTY: Plaintiffs

Rose ML, Inc. and Shisha Aroma, Inc.

This

is an action arising from an alleged breach of contract and related business torts. Plaintiffs Rose ML, Inc. and Shisha Aroma, Inc. (collectively, "Plaintiffs") allege that defendants Air Distribution USA, Inc. and Robert Maneson (collectively, "Defendants") entered into an agreement with Plaintiffs not to sell certain products except to certain persons or under certain circumstances, and that Defendants breached this agreement. Plaintiffs also allege various business torts including fraud, interference with prospective economic advantage and interference with contract. The cross-complaint of Air Distribution USA, Inc. ("Air Distribution") is not at issue in this motion.

1. Evidentiary Objections

Defendants object to portions of the declarations of Sal Haddadin and Ramzi Haifawi, as well as portions of the deposition of Bassem Chahine. The court sustains objection 6 to the Haddadin Declaration, and declines to rule on the remaining objections, finding them immaterial to the resolution of the motion. The court sustains objection 7 to the Haifawi Declaration, and declines to rule on the remaining objections finding them immaterial to the resolution of the motion. The court finds Defendants' objections to the Chahine deposition to be immaterial to its determination on this matter, and therefore declines to rule on them.

2. Requests for Judicial Notice

Defendants

request that the court take judicial notice of the First Amended Complaint ("FAC"); the Second Amended Cross-Complaint ("SACC"); the First Amended Cross-Complaint filed in the related case Shisha Aroma v. AIR Distributions USA Inc., et al., Case No. 23CMCV01619 ("FACC"); the Right to Attach Order; the Temporary Protective Order; and the Temporary Restraining Order. Pursuant to California Evidence Code 452, subd. (d), judicial notice may be taken of records

of any court of this state. (Id., subd. (d).) The court takes judicial notice of the requested documents.

3. Discussion

a. Motion to Seal

Plaintiffs move to file their opposition under seal on the grounds that portions of the opposition are subject to a stipulated protective order entered in this case and have been designated as confidential. No party has opposed this motion.

Courts evaluate motions to seal documents under California Rules of Court, rules 2.550 and 2.551, which codify requirements for ordering sealing of court documents. The requirements were stated in *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178. Among the requirements articulated by California Rules of Court, rules 2.550 and 2.551 are that to grant a motion to seal court documents, the court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550(d); *NBC Subsidiary*, supra, 20 Cal.4th at pp. 1217-1218.)

Plaintiffs have not established that an overriding interest exists that overcomes the right of public access to the record. A stipulated protective order is insufficient to satisfy the requirements set forth under *NBC Subsidiary*. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1281 [sealing requires more than “mere agreement of the parties”].) The court will therefore deny Plaintiffs’ motion to seal.

Moreover, although the court has denied Plaintiffs’ motion to seal, the court notes that Plaintiffs’ counsel, attorney Thomas A. Moore, improperly redacted the information at issue in the motion to seal in such a fashion permitting a person to highlight, copy, and paste the redacted text to reveal it. As this permits the public to view information filed conditionally under seal, this constitutes a violation of California Rules of Court, rule 2.551, subd. (c). Under normal circumstances, the court would set an order to show cause as to why the court should not impose monetary sanctions against counsel,

pursuant to California Rules of Court, rule 2.30. However, because the court denies the motion to seal, this would not be an efficient use of judicial resources. Plaintiff's counsel is admonished to use greater care in future court filings to ensure that documents filed conditionally under seal are illegible to members of the public.

b. Special Motion to Strike

Defendants move to strike the seventh and eighth causes of action in the FAC for interference with contract and interference with prospective economic advantage, pursuant to Code of Civil Procedure § 425.16. Defendants contend that these causes of action arise from protected and privileged activity, specifically litigation-related correspondence sent to several of Plaintiffs' customers protected by the litigation privilege. In opposition, Plaintiffs contend the letters are not privileged and that they merely provide context to Plaintiffs' claims and do not constitute the gravamen of Plaintiffs' claims.

“The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 393 (Baral).) “The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity.” (Id. at p. 384.)

“Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Ibid. [citation omitted].) The California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’” The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. “[C]laims with the requisite minimal merit may proceed.” (Id. at pp. 384-385 [citations omitted].)

1. First Prong: Protected Activity

Defendants contend that the seventh and eighth causes of action arise from protected activity in the form of a form letter that Air Distribution's General Counsel sent to various of Plaintiffs' customers that informed them of ongoing litigations and judicial orders against Rose ML, Inc. Protected activity is defined as acts "in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Code Civ. Proc., § 425.16, subd. (b)(1).) This includes "any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law." (Id., subd. (e)(2).) In other words, the statute protects statements made in litigation, or statements connected to litigation. (Drell v. Cohen (2014) 232 Cal.App.4th 24, 29.)

The FAC alleges:

"In furtherance of its scheme to defraud and harm SHISHA and ROSE ML, AIR DISTRIBUTION utilized SHISHA's and ROSE ML's customer lists that it had obtained under false pretenses, in a campaign to harm SHISHA and ROSE ML. Specifically, AIR DISTRIBUTION issued correspondence to SHISHA's and ROSE ML's customers which stated, inter alia: a. That SHISHA's and ROSE ML's assets were being confiscated by law enforcement agencies; b. That any debt owed by those customers to Plaintiffs must instead be paid directly to AIR DISTRIBUTION; c. That failure to make payment directly to AIR DISTRIBUTION instead of Plaintiffs would result in legal action taken against those customers; and d. That if those customers continued to do business with SHISHA or ROSE ML, in addition to being subject to litigation, would be 'blackballed' and be prohibited from purchasing AIR DISTRIBUTION's products." (FAC ¶ 60.)

The FAC further alleges that "[t]he actions of AIR DISTRIBUTION in issuing this correspondence were intended to, and did, interfere with SHISHA's and ROSE ML's contracts with their existing customers. These actions were also intended to, and did, harm the reputations of SHISHA and ROSE ML in their industry and wrongfully deprived Plaintiffs of future economic advantage in their industry." (FAC ¶ 61.) The correspondence at issue is provided as Exhibit D to the FAC.[1]

"A statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the

substantive issues in the litigation and is directed to persons having some interest in the litigation”].) (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1266.)

These statements alleged in the FAC, which reference the letters attached as Exhibit D to the FAC (the “Letters”), indicate that Air Distribution’s General Counsel’s communications sent to Plaintiffs’ customers form at least in part the basis for Defendants’ seventh and eighth causes of action for intentional interference with contract and for intentional interference with prospective economic advantage. With the exception of the sentence reading “[t]his includes purchasing and selling products from any of the companies and individuals owned or controlled by them, again whether direct or indirect,” the Letters constitute litigation-related communications within the meaning of § 425.16, subd. (e)(2). The Letters inform Plaintiffs’ customers of the instant ongoing litigation and the right to attach order authorizing Defendants to seize Rose ML, Inc. and Sal Haddadin’s assets. The Letters also request that any of Plaintiffs’ customers who owe Rose ML, Inc. or Sal Haddadin money contact Defendants. These statements are, without question, litigation-related communications, as they closely relate to existing court orders and issues under consideration by the court in this action, and are directed to interested people and/or entities from whom Defendants seek to collect.

However, the sentence in the Letters indicating that the customers should not buy or sell from Plaintiffs does not relate to and goes beyond issues under consideration by the court in this action, and therefore does not constitute litigation-related activity.

Moreover, the FAC also alleges that Defendants fraudulently obtained Plaintiffs’ customer list purportedly for marketing reasons (FAC ¶ 56), then gave other distributors Plaintiffs’ customer lists so that the other distributors could undercut Plaintiffs, which allegedly subsequently occurred. (FAC ¶¶ 43, 49.) Plaintiffs allege in the FAC that customers canceled orders with them, informing them that they were able to obtain shisha product more cheaply from other distributors. (FAC ¶ 49.) This alleged conduct does not constitute litigation-related communication or otherwise protected activity, and it underlies Plaintiffs’ causes of action for intentional interference with contract and intentional interference with prospective economic advantage.

Based on the foregoing, the court concludes the FAC alleges both protected

and unprotected activity. Under Baral, where a cause of action alleges both protected and unprotected activity, the unprotected activity is disregarded when analyzing the first prong of an anti-SLAPP motion, such that the motion proceeds only on the protected activity. (Baral, supra, 1 Cal.5th at p. 396) If the court thereafter determines that there is no probability of prevailing on the claim based on the protected activity, the allegations of protected activity are stricken, while the allegations of unprotected activity may remain. (Ibid.)

In Baral, the party moving to strike under section 425.16 identified the specific allegations it requested to be stricken. Here, Defendants move to strike the entirety of the seventh and eighth causes of action, not a portion thereof. Defendants repeatedly argue in the motion that these causes of action are based entirely on the Letters. “Plaintiffs’ seventh cause of action for interference with contract and eighth cause of action for interference with prospective economic advantage are based on a single, privileged act: a letter from AIR Distribution’s then General Counsel to various customers providing an update about this litigation and the orders issued by this Court.” (Motion, p. 8:12-15; see also, § II-D.)

Nowhere in the notice of motion or in the points and authorities do Defendants request that only portions of the seventh and/or eighth causes of action be stricken. The only relief sought is an order striking the entirety of these causes of action. However, even when the moving defendant seeks only to strike a cause of action in its entirety, courts must analyze each separate claim for relief within the cause of action to determine whether the acts are protected. (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1010–1011.) “If a cause of action contains multiple claims and a moving party fails to identify how the speech or conduct underlying some of those claims is protected activity, it will not carry its first-step burden as to those claims.” (Id. at p. 1011; Pech v. Doniger (2022) 75 Cal.App.5th 443, 459.)

As Bonni explained, there is a difference between allegations that supply the elements of a claim and allegations of incidental background. (Ratcliff v. The Roman Cath. Archbishop of Los Angeles (2022) 79 Cal. App. 5th 982, 1003, as modified (June 15, 2022), citing Bonni, supra,

11 Cal.5th at p. 1012.) “Allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.” (Baral, supra, 1 Cal.5th at p. 394.) “Courts may consider the ‘gravamen’ of claims to determine whether particular acts are elements, as opposed to incidental background, but not to determine the essence of a mixed cause of action.” (Cordoba Corp. v. City of Industry (2023) 87 Cal.App.5th 145, 151.)

Plaintiffs contend that the Letters are mere incidental background; however, the FAC expressly alleges that the letters were intended to, and did, interfere with Plaintiffs’ contracts and prospective economic advantage, indicating that the Letters underlie their causes of action. (FAC ¶ 61.) Conversely, Defendants contend that the customer list-related allegations constitute incidental background; however, it is apparent that Plaintiffs’ allegations of undercutting constitute factual allegations in support of their causes of action and elements of the causes of action in the form of allegedly intentional acts designed to induce a disruption of a contractual or economic relationship.

The court concludes that neither the Letters nor the allegations concerning Plaintiffs’ customer list constitute “incidental background”; rather, each appears to constitute factual allegations underlying Plaintiffs’ causes of action. As such, the court finds that neither constitutes the sole gravamen of Plaintiffs’ claims nor merely background.

Plaintiffs further contend that the Letters are exempt from the provisions of the anti-SLAPP statute as constituting commercial speech under Code of Civil Procedure § 425.17, subd. (c). Plaintiffs cite *FilmOn.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133 (“*FilmOn*”) and *Simpson Strong-Tie Co., Inc. v. Gore* (2010) 49 Cal.4th 12 for the proposition that a defendant who makes statements about a business competitor’s goods or services, for the purpose of advancing their own goods or services, cannot apply the anti-SLAPP statute. However, this exception is limited to a specific subset of commercial speech: comparative advertising. (*FilmOn*, supra, 7 Cal.5th at p. 147.) The court concludes the Letters do not constitute commercial comparative advertising. The Letters make no statement as to the quality, price, or other features of either Plaintiffs’ or Defendants’ goods or services. Also, any contention of comparative advertising is disproved by the Haddadin and Haifawi declarations which state that Plaintiffs’ product was the same as Defendants’ product

because Plaintiffs sold Defendants' product as a distributor. (Haddadin Decl. ¶ 3; Haifawi Decl. ¶ 3.) Therefore, the commercial speech exception to the anti-SLAPP statute does not apply.

As such, Defendants have shown that the vast majority of the text of the Letters constitutes protected activity. The burden now shifts to Plaintiffs to establish that they have a probability of prevailing on the merits as to the allegations at issue asserted in the interference causes of action.

2. Second Prong: Probability of Prevailing

In order to show a reasonable probability of prevailing within the meaning of the anti-SLAPP statute, a plaintiff must show that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. (*Safari Club International v. Rudolph* (9th Cir. 2017) 862 F.3d 1113, 1121.) Plaintiffs contend that they have a reasonable probability of prevailing on both their intentional interference with contract and intentional interference with prospective economic relations causes of action.

a. Intentional

Interference with Contract

"The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damages." (*Seaman's Direct Buying Service, Inc. v. Standard Oil Co.* (1984) 36 Cal.3d 752, 765-66.)

Plaintiffs contend that it is "not subject to dispute" that contracts existed between Plaintiffs and their customers. First, it is Plaintiff's burden to plead and to prove that there is at least minimal merit as to each element of the claim. The seventh cause of action for interference with contractual relations fails to adequately allege the existence of a valid contract between Plaintiff(s) and any third party, as is required to state a cause of action. Instead, it generally alleges:

Defendants, and each of

them, knew of SHISHA's and ROSE ML's existing contracts and business relationships with its customers and wholesalers. Despite knowing of these contracts and existing business relationships, Defendants, and each of them, intentionally interfered with those contracts and business relationships by encouraging those relationships to fail by communicating directly with those relationships in encouraging that they breach their obligations to SHISHA and ROSE ML, thereby causing permanent harm to SHISHA and ROSE ML. (FAC, ¶ 104.)

Nor

do the general factual allegations include any such facts. (See, FAC, § 61.) Thus, the FAC is not legally sufficient to state a claim for interference with contractual relations.

Moreover, Plaintiffs did not meet their burden to bring forth even the minimal evidence required to establish the existence of any contractual relationship they had with any customer. The fact a third party is or was a customer is not evidence of a contractual relationship. In many business relationships a customer may purchase from a vendor without a contract. Plaintiffs cite to paragraph 3 of the declarations of each of Ramzi Haifawi and Sal Haddadin for the proposition that contracts existed between Plaintiffs and their customers. However, these declarations do not establish this proposition.

Each states that the declarant "worked diligently to locate and establish relationships with customers who would purchase [Air Distribution's] shisha tobacco products from [Plaintiffs]." (Haddadin Decl. ¶ 3; Haifawi Decl. ¶ 3.) These statements do not establish that any contracts existed between Plaintiffs and any recipient of the Letters or any other third party.

Plaintiffs have not provided any other evidence tending to show that such contracts existed. Nor did Plaintiffs bring forth evidence to support the allegation in the FAC that Defendants had knowledge of any such contractual relationship with the recipients of the Letters, as distinct from a customer relationship.

As the existence of contracts between Plaintiffs and their customers who purportedly received the Letters, and Defendants' knowledge thereof are necessary elements to a cause of action for intentional interference with contract, Plaintiffs have failed to make a prima facie showing and therefore fail to establish a probability of prevailing on this cause of action with respect to the Letters.

b. Intentional

Interference with Prospective Economic Advantage

To state a cause of action for intentional interference with prospective economic advantage, a plaintiff must plead: "(1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentional acts on the part of the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant." (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1153.) The California Supreme Court has repeatedly emphasized that the first element, probability of future economic benefit, is a threshold requirement designed to screen out claims based on overly speculative expectancies. (Youst v. Longo (1987) 43 Cal. 3d 64.)

Evidence of past economic benefit does not, by itself, establish the requisite probability of future economic benefit under California law. (44B Am. Jur. 2d Interference § 48; Cal. Prac. Guide Employment Litigation Ch. 5(l)-F; 5 Witkin, Summary 11th Torts § 855 (2026); 3 Cal. Real Est. Digest 3d Interference § 6; 40 Cal. Jur. 3d Interference with Economic Advantage § 12.) A plaintiff must point to a specific, existing relationship from which the probability of continued future benefit can be reasonably inferred.

The declarations of Haifawi and Haddadin establish that an economic relationship existed between Plaintiffs and their customers at some point in time. However, the declarations do not establish any economic relationship between Plaintiffs and the particular recipients of the Letters at the time the Letters were sent, nor do they establish that a relationship existed which had a probability of future economic benefit.

Even assuming arguendo that future economic benefit can be inferred from a "customer" relationship at some point in time, a cause of action for intentional interference with prospective economic advantage requires that the plaintiff prove that the defendant's interference was wrongful by some measure beyond the fact of interference itself. (Della Penna v. Toyota Motor Sales, U.S.A., Inc. (1995) 11 Cal.4th 376, 392-393.) Plaintiffs argue that the Letters constitute extortion. Extortion constitutes the obtaining of property of another by the wrongful use of force or fear. (Pen. Code, § 518.) Fear, as used in this statute, may be induced by a person

threatening physical force, accusations of crime or disgrace, exposure of a secret, or reporting of suspected immigration status. (Pen. Code § 519.) The Letters involve none of the aforementioned threats, nor do they involve any use of physical force. The court concludes the statements asserted in the Letters do not constitute extortion. Plaintiffs have made no other argument that the sending of the Letters constituted independently wrongful conduct beyond the mere fact of interference itself.

Based on the foregoing, Plaintiffs have failed to establish a probability of prevailing on this cause of action with respect to the Letters.

c. Privilege

Although Plaintiffs have failed to carry their burden to establish that they have a probability of prevailing on their claims based on the Letters, the court will nonetheless analyze Defendants' claim that Plaintiff cannot prevail on these claims because the Letters are protected by the litigation privilege. Plaintiffs contend that the Letters are not privileged because they constitute litigation in the press and because they constitute illegal activity.

The litigation privilege applies to "any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) This includes publications made outside the courtroom and not involving any judicial officers or function of the court. (Ibid.)

The Letters (excluding the sentence not at issue in this prong whereby Defendants urge the recipients not to purchase from Plaintiffs) are communications made by litigants during the course of the judicial proceedings, specifically this action. The Letters have some connection to the action because they inform Plaintiffs' customers of the ongoing proceedings and the implications for their business dealings with Plaintiffs. The Letters were made to achieve the objects of the litigation, because they inform Plaintiffs' customers that pursuant to the court's orders, Defendants may seek recovery from any person who owes Plaintiffs money and request that such persons contact Defendants.

Plaintiffs contend that the Letters are not privileged because they

constitute extortion. Illegal activity otherwise protected by the litigation privilege is not subject to the anti-SLAPP statute. (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 322.) However, as previously noted, the Letters do not constitute extortion, and Plaintiffs make no other argument that they constitute any other kind of illegal activity.

Plaintiffs also contend that the Letters are not privileged because they constitute litigation in the press. The litigation privilege does not extend to "litigating in the press" because communications made to unrelated parties to the litigation do not further the objects of the litigation. (*Rothman v. Jackson* (1996) 49 Cal.App.4th 1134, 1147-1148.)

However, this bar applies only where the publication is made to persons who are in no way connected to the proceedings. (*Susan A. v. County of Sonoma* (1991) 2 Cal.App.4th 88, 93.) With two exceptions, the Letters were sent to Plaintiffs' customers. The customers are connected to the proceedings because they are persons or entities who may owe Plaintiffs money, which is relevant to the October 20, 2023 order directing the seizure of Rose ML, Inc. and Haddadin's personal assets. It is also relevant to Defendants' stated intention to pursue a similar order against Shisha Aroma and Ramzi Haifawi.

As for Plaintiffs' contention that two of the Letters were sent to persons who are and were not Plaintiffs' customers, the Letters would not be privileged because the third parties would have no interest in the litigation. However, they cannot support a cause of action for intentional interference with contract or intentional interference with prospective economic advantage because Plaintiffs, by their own admission, had no economic or contractual relationship with these persons. (Opp., p. 15, fn. 3.)

As Plaintiffs have failed to establish that an exception applies, the court concludes the relevant portions of the Letters are protected by the litigation privilege. Plaintiffs have failed to establish that they have a probability of prevailing on their claims to the extent those claims are based on the Letters. The court will therefore strike the portions of the FAC referring to the Letters, except where they refer specifically to the sentence stating: "This includes purchasing and selling products from any of the companies and individuals owned or controlled by them, again whether direct or indirect." (FAC, Ex. D.)

As factual allegations of unprotected activity exist in connection with Plaintiffs' causes of action for

intentional interference with contract and intentional interference with prospective economic advantage, the court declines to strike Plaintiffs' seventh and eighth causes of action in their entirety.

4. Conclusion

Based on the foregoing, the court DENIES Plaintiffs' motion to file their opposition to the special motion to strike portions of the FAC under seal.

The court GRANTS IN PART and DENIES IN PART Defendants' special motion to strike pursuant to Code of Civil Procedure § 425.16. The court strikes paragraphs 60 and 61 of the First Amended Complaint, as well as the body of Exhibit D with the exception of the sentence reading "This includes purchasing and selling products from any of the companies and individuals owned or controlled by them, again whether direct or indirect." The court otherwise denies the motion.

Defendants are ordered to give notice.

IT IS
SO ORDERED.

DATED: September 8, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court

[1] As an aside, the court notes that the letters provided as Exhibit D to the FAC and as Exhibit 3 to the declaration of Thomas A. Moore in connection with this opposition do not match the assertions that Plaintiffs allege in the FAC and the opposition that the letters make. The court admonishes Plaintiffs for misrepresenting the evidence provided to the court in the form of the unambiguous text of these letters.